

26IWUD00666 26IWUD00666

County: los-angeles

Division: Civil Law and Motion

Department: 8

Hearing date: 2026-06-24

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Case Number: 26IWUD00666 Hearing Date: June 24, 2026 Dept: 8

Tentative ruling:

The court grants the Defendant's motion for leave to amend the answer. "Code of Civil Procedure section 473, subdivision (a)(1) permits a court, 'in furtherance of justice,' to 'allow a party to amend any pleading . . . in any . . . respect.' . . . Generally, 'the trial court has wide discretion in determining whether to allow the amendment, but the appropriate exercise of that discretion requires the trial court to consider a number of factors,'" including the conduct of the moving party and the belated presentation of the amendment. (Emerald Bay Community Assn. v. Golden Eagle Ins. Corp. (2005) 130 Cal.App.4th 1078, 1097.) "'In the furtherance of justice, trial courts may allow amendments to pleadings and if necessary, postpone trial. [Citation.] Motions to amend are appropriately granted as late as the first day of trial [citation] or even during trial . . .'" (W&W El Camino Real, LLC v. Fowler (2014) 226 Cal.App.4th 263, 270-271; see Ventura v. ABM Industries, Inc. (2013) 212 Cal.App.4th 258, 268) ["Trial courts are bound to apply a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial where the adverse party will not be prejudiced."].)

The Defendant appears to have complied with the requirements of California Rules of Court, rule 3.1324, and there is no evidence the Plaintiff will be substantially prejudiced by the amendments. Indeed, there is not yet even a trial date set, and if requested, the Court will give the parties time to complete any additional discovery before trial. (See W&W El Camino Real, LLC v. Fowler, supra, 226 Cal.App.4th at p. 270 [no substantial prejudice where the trial court afforded the plaintiff an additional opportunity to conduct discovery after granting the defendant's motion to amend the answer on the day of trial].)